

TENTATIVE RULING(S) FOR September 3, 2026

Department S37 – Judge Winston Keh

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CIVSB2522694

Isidoro vs Hernandez

TENTATIVE RULING:

Plaintiffs Filiberto Garcia Isidoro and Hipolito Garcia move for summary adjudication of their right to partition by sale of the real property located at 16650 Randall Ave., Fontana (the “Subject Property”). Defendants Blanca Isidoro Hernandez, individually and as trustee of the Blanca Hernandez Revocable Trust dated February 14, 2024, and Esmeralda Garcia oppose.

For the reasons discussed below, the Motion is GRANTED IN PART and DENIED IN PART.

Judicial Notice

Plaintiffs request judicial notice of (1)-(5) recorded Grant Deeds, Quitclaim Deeds, or Trust Transfer Deeds (Exhs. A-E), (6) recorded Deed of Trust (Exh. F), and (7) Complaint (Exh. G).

GRANT per Evidence Code section 452, subdivisions (c), (d), and (h), and *Yvanova v. New*

Century Mortgage Corporation (2016) 62 Cal.4th 919, 924, fn. 1 (recognizing a court may properly take judicial notice of the existence and content of recorded documents, but not of disputes or disputable facts stated therein).

Evidentiary Objections

OVERRULE all 6 objections to Filiberto's Declaration and objections #1-9 and 12 to Hipolito's Declaration. SUSTAIN objections #10-11 (pp. 3:6-7 and 3:7-8) to Hipolito's Declaration (argument).

Analysis

A summary judgment motion cuts through the parties' pleadings to determine if a trial on the facts is necessary. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 [*Aguilar*].) Only the pleadings establish the grounds for granting or denying summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.)

A party may move for summary adjudication of causes of action, affirmative defenses, damages, or issues of duty. (Code Civ. Proc., §437c, subd. (f)(1).) The rules and procedures for a summary judgment motion equally apply. (Code Civ. Proc., §437c, subd. (f)(2); *Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

When the plaintiff moves for summary judgment/adjudication, it is his burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Code Civ. Proc., §437c, subd. (p)(1); *Aguilar, supra*, 25 Cal.4th at p. 850.) Upon the plaintiff meeting his burden, the burden shifts to the defendant to show a triable issue of one or more material fact exists as to the cause of action or defense. (Code Civ. Proc., §437c, subd. (p)(1); *Aguilar, supra*, 25 Cal.4th at pp. 849-51.)

Defendants contend Plaintiffs improperly rely on allegations in the verified Complaint. Plaintiffs may "not rely on the allegations of a [their] verified complaint" to establish undisputed facts. (*IFS Industries, Inc. v. Stephens* (1984) 159 Cal.App.3d 740, 753.) But this does not render the Separate Statement defective where the facts are also supported by admissible evidence. The Court therefore considers the evidence properly presented.

A partition action is an equitable action in which co-tenants/co-owners can seek to sever their co-ownership. (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035.) A partition trial contains three components: (1) determining the interest of the parties and the status and priority of all liens upon the property [Code Civ. Proc., §§872.610, 872.620, 872.630], (2) determining if the plaintiff is entitled to partition [Code Civ. Proc., §872.710], and (3) determining the manner of partition, i.e., of kind, of sale, or combination of kind and sale [Code Civ. Proc., §§872.810, 872.820, 872.830, 873.210].

Partition of concurrent interest in property shall be as a right unless barred by a valid waiver or as provided by Code of Civil Procedure section 872.730. (Code Civ. Proc., §872.710, subd. (b); *De Roulet v. Mitchel* (1945) 70 Cal.App.2d 120, 124 [“To grant it is not a mere matter of grace. The only indispensable requirement [for partition] is that a clear title be shown....”].)

Here, the recorded deeds establish that Filiberto, Hipolito, and the Trust are the current title holders of the Subject Property. (RJN, Exhs. D-E.) Although title was held as joint tenants when owned by Blanca, Filiberto, and Hipolito [RJN, Exh. D], Blanca’s transfer of her interest to the Trust resulted in the ownership being held as tenants-in-common. [RJN, Exh. E.] (*Zanelli v. McGrath* (2008) 166 Cal.App.4th 615, 631; *Riddle v. Harmon* (1980) 102 Cal.App.3d 524, 531.) Thus, the recorded deeds establish that the Trust, Filiberto, and Hipolito each hold a 1/3 undivided interest in the Subject Property.

Defendants contend that the recorded title does not reflect the parties’ actual ownership because Filiberto and Hipolito were placed on title only to facilitate financing and Blanca retained all beneficial ownership. By presumption, the owner of the legal title is the presumed owner of the beneficial title. (Evid. Code, §662.) This presumption may be rebutted by clear and convincing proof. (Evid. Code, §662.)

Defendants’ evidence does not create a triable issue sufficient to rebut that presumption. The property was transferred among the family members on multiple occasions, including the removal of Filiberto from title and his subsequent re-addition. Blanca also attests that Filiberto was not making any money to be placed on the loan [Blanca’s Decl. at ¶32], yet he was placed on title when the Subject Property was first purchased [RJN, Exh. A]. Finally, although Blanca

attests that she intended to have all her children on the title so they obtain the property upon her death (Blanca's Decl. at ¶35), none of the title transfers ever added Esmeralda.

Esmeralda likewise has not established an ownership interest. The recorded Trust Deed establishes a \$300,000 lien in her favor. A trust deed conveys a lien, not a beneficial ownership interest. (*Robin v. Crowell* (2020) 55 Cal.App.5th 727, 742 ["[A] deed of trust is a lien on the property."]; *In re Criz* (S.D.Cal. 2011) 457 B.R. 806, 817 ["[A] deed of trust is no longer a conveyance of actual title to the Property, but merely a lien."].) A cotenant may encumber his or her separate interest without affecting the interests of the other tenants. (*Dieden v. Schmidt* (2002) 104 Cal.App.4th 645, 650 ["Cotenants (both joint tenants and tenants in common) may encumber their separate interest without the consent, and without affecting the interests, of other tenants."].) Moreover, a lienholder may not stop a partition but has the right to receive satisfaction or other disposition of its lien. (*Gardiner v. Cord* (1904) 145 Cal. 157, 164-65.)

Accordingly, Plaintiffs have established that they are co-owners of the Subject Property and are entitled to partition. Unless waived, the right to partition is absolute for a co-owner. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493; see also Code Civ. Proc., §872.210, subd. (a)(1).) Defendants do not claim Plaintiffs waived their right to seek partition.

The issue of the manner of partition, however, is different. When one co-owner seeks partition, the presumption is for physical division and distribution of a portion to each co-owner. (Code Civ. Proc., §872.810; *Butte Creek Island Ranch v. Crim* (1982) 136 Cal.App.3d 360, 365-66 [*Butte Creek*].) Partition by sale is permissible if the parties agreed to said relief [Code Civ. Proc., §872.820, subd. (a)], or it is more equitable to sell the property under the circumstances [Code Civ. Proc., §872.820, subd. (b)]. Partition by sale is more equitable when "the property is so situated that a division into sub parcels of equal value cannot be made" or "due to the particular situation of the land, the division of the land would substantially diminish the value of each party's interest." (*Butte Creek, supra*, 136 Cal.App.3d at pp. 366-67.) The party seeking the sale bears the burden that selling is more equitable rather than physical division. (*Id.* at p. 366.)

Plaintiffs have not met that burden. Although the evidence indicates that dwelling units exist on the Subject Property, Plaintiffs have not established that the property cannot be divided into

equal portions or that physical division would substantially diminish the value of each party's interest. (*Butte Creek, supra*, 136 Cal.App.3d at p. 366 ["[T]he party desiring a partition sale must show the land cannot be divided equally."].)

Thus, Plaintiffs are entitled to partition, but they have not established as a matter of law that partition must be accomplished by sale. If the Court later determines that partition by sale is appropriate, the Court may then determine the appropriate method and terms of sale. (Code Civ. Proc., §§873.510, 873.520, 873.600, 873.610.)

Disposition

Plaintiffs' Motion for Summary Adjudication is GRANTED IN PART and DENIED IN PART.

The Motion is GRANTED insofar as Plaintiffs seek determination that they are entitled to partition the Subject Property.

The Motion is DENIED insofar as Plaintiffs seek a determination that the Subject Property must be partitioned by sale. The evidence presently before the Court does not establish that partition by sale is more equitable than partition in kind.

The Court therefore does not presently determine the manner of partition.

Entry of an Interlocutory Judgment of Partition pursuant to Code of Civil Procedure section 872.720 is DEFERRED pending further proceedings to determine the appropriate manner of partition and to address any remaining issues concerning the status and priority of liens or other interests in the Subject Property.

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CIVSB2515007

Lomeli vs GAF Materials et al

TENTATIVE RULING:

On September 29, 2025, Defendant Express Employment Professionals, LLC (“Express”) filed the instant Motion to Compel Arbitration of Plaintiff’s Individual PAGA Claim and to Stay the Representative PAGA Claim (“Motion”), supported by declarations from Harvey H.H. Homsey (“Homsey”) and Nora Stilestein. On October 20, 2025, Defendant GAF Materials, LLC (“GAF”) filed a Joinder in Express’s Motion (“Joinder”).

Plaintiff filed his Opposition to the Motion (“Opposition”) on January 27, 2026, supported by a declaration from Plaintiff. Express filed its Reply on February 2, 2026, supported by a declaration from Ashley Rowlett and objections to Plaintiff’s declaration (“Evidentiary Objections”).